



Stephen Cooke <stephencooke.c@gmail.com>

Your Family Law Matter - Mediation & QLD Valuation

3 messages

Prue Garvin <prue@claritylawyers.com.au>

Mon, May 13, 2024 at 4:08 AM

To: "stephencooke.c@gmail.com" <stephencooke.c@gmail.com>

Cc: Jacqueline Turner <j.turner@claritylawyers.com.au>

Hi Stephen,

Please find **enclosed** for your review and signature Mediation Agreement. Can you please review and sign where indicated and return to our office.

Further, we **enclose** for your review "Mediation – Some Common Questions and Answers" and "Themes – How we Got Here". The mediator has requested that you read over this information prior to mediation.

Mediation Costs

We confirm the mediator's fees are \$6,000 plus GST (shared equally between you and Heather). In addition, the mediator is also charging \$1,000 plus GST for travel and accommodation (also shared equally between you and Heather).

Costs of the room hire at the Newcastle Resolution Centre is \$250 plus GST per party.

Rebecca Van Oosterom's fees associated with preparation and attendance at mediation are \$5,000 plus GST.

Therefore, the total amount required is \$9,625 (incl GST). We confirm we have set aside this amount from funds held in our trust account and there is no additional payment required by you.

Conference prior to mediation

Can you please confirm it is your preference to have a conference with our firm and Counsel in the week prior to mediation. I am currently seeking Rebecca's availability between 11-14 June. Please let me know as soon as possible that you wish for the conference to go ahead.

Como Crescent Valuation

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I refer to our recent correspondence in relation to proposed Valuers and their fees. So that we can ensure the valuation is completed well before mediation, can you please provide **by no later than 10am tomorrow** your chosen valuer so that we can advise Delaney Roberts and they can prepare the joint letter of instruction.

Please do not hesitate to contact me if you have any questions regarding the information above.

Many thanks,

Yours faithfully,

Prue Garvin | Paralegal



Phone: (02) 4023 5553

Email: prue@claritylawyers.com.au

[Click Here to Book an Appointment](#)

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2 attachments



Cooke MEDIATION AGT .pdf

148K



Mediation - Some Common Questions.pdf

396K

Stephen Cooke <stephencooke.c@gmail.com>
To: mshepherd@ramsdenlaw.com.au

Sun, May 12, 2024 at 8:41 PM

Hi Mathew,

Please see below.

Do you have any advice as to how to stop this? I have already requested previously via email to my lawyer my desire to delay this mediation as we have insufficient disclosure from the other side.

Stephen Cooke

Follow me on LinkedIn: [www.linkedin.com/in/stephen-cooke-b853702ab]

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2 attachments

**Cooke MEDIATION AGT .pdf**

148K

**Mediation - Some Common Questions.pdf**

396K

Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Tue, May 21, 2024 at 11:40 AM

To: Stephen Cooke <stephencooke.c@gmail.com>

Dear Stephen

You will have seen my email to the suggested mediator Gary Foster re whether the matter is ready for the date in June. Putting the date aside, I think you need to decide if you want to use him – and if not whom.

Mediation provides an opportunity to see if the matter can be settled and further court avoided. We should give it our best shot.

I am not sure who suggested Gary. He is an experienced ex-judge from Sydney. I appeared before him when he was a judge. I have not used him as a mediator.

His fee is \$6,000 + GST (I charge as a mediator \$5,000 + GST and I am not an ex-judge). He is asking for \$1,100 for travel and accommodation. This makes total of \$7,700 which is shared equally is \$3,350. Plus room hire at \$250.

Money might be used by doing it via Zoom, but I find participants do not focus and make as good decision by Zoom.

It is a long way to go back and forth and engage in a mediation which may be long and hard. In fact, I need to consider how I manage it. You could avoid my travel costs by using a barrister in Newcastle but that creates additional costs of briefing them. You could use the barrister you have sued before.

Regards,

MATTHEW SHEPHERD

Acc. Spec. (Family Law) NSW

D: (02) 8123 1229

E: mshepherd@ramsdenlaw.com.au



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PERSPECTIVE

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